APL-2017-00184

To be Argued by:
CHRISTOPHER DUNN
(Time Requested: 15 Minutes)

Court of Appeals of the State of New York

NEW YORK CIVIL LIBERTIES UNION,
Appellant,

– against –

NEW YORK CITY POLICE DEPARTMENT,
Respondent.

BRIEF OF APPELLANT NEW YORK CIVIL LIBERTIES UNION

NEW YORK CIVIL LIBERTIES UNION FOUNDATION
Christopher Dunn
Robert Hodgson
Arthur Eisenberg
125 Broad Street, 19th Floor
New York, NY 10004
(212) 607-3300
(212) 607-3318 (fax)

Attorneys for Appellant

Date Completed: October 26, 2017

DISCLOSURE STATEMENT PURSUANT TO SECTION 500.1(F) OF THE RULES OF THE COURT OF APPEALS

The Appellant New York Civil Liberties Union is incorporated in New York as a not-for-profit entity. It has no corporate parents, subsidiaries, or affiliates, but it does function as the New York affiliate of the American Civil Liberties Union (ACLU).

STATEMENT OF RELATED LITIGATION

None. (Placeholder: not shown in the filed exemplar; see the note in the frontmatter comment above.)

TABLE OF CONTENTS

Disclosure Statement Pursuant to Section 500.1(f) of the Rules of the Court of Appeals i

Question Presented 1

Statement of Jurisdiction 1

Introduction 1

Statement of Facts 3

Administrative Proceedings 7

Lower Court Proceedings 9

The First Department Decision 12

Argument 14

I. AN OVERVIEW OF THE FREEDOM OF INFORMATION LAW AND SECTION 50-A 15

II. DECADES OF RULINGS FROM THIS COURT ESTABLISH THAT REDACTION IS AVAILABLE TO BALANCE THE TRANSPARENCY GOALS OF THE FREEDOM OF INFORMATION LAW AND THE PRIVACY INTERESTS OF SECTION 50-A 17

A. This Court Has Expressly Endorsed Redaction as a Tool to Balance FOIL's Transparency Goal Against Section 50-a's Privacy Interests and Has Held that Section 50-a Must Be Read Narrowly in the Context of FOIL Disputes 18

B. This Court's Endorsement of Redaction in *Daily Gazette* Is Consistent with Nearly Forty Years of Rulings from This Court Endorsing Redaction as a Tool in FOIL Disputes 23

C. This Court's Endorsement of Redaction in *Daily Gazette* Is Also Consistent with Rulings from the United States Supreme Court and State Courts that Have Confronted Similar Controversies 27

III. THIS COURT SHOULD ORDER PRODUCTION OF THE NYPD TRIAL ROOM DECISIONS WITH IDENTIFYING DETAILS OF SUBJECT OFFICERS REDACTED. 30

A. *Daily Gazette* and This Court's Many Other FOIL Rulings Compel the Conclusion that the NYPD Trial Room Decisions Must Be Produced with Identifying Details Redacted to Protect Officer Privacy 30

B. The Appellate Division Erred When It Disregarded *Daily Gazette* and Read Two Other Cases from This Court to Bar Redaction in FOIL Cases Involving Section 50-a .. 36

Conclusion 42

TABLE OF AUTHORITIES

Cases:	**Page(s)**
Capital Newspapers Division of the Hearst Corporation v Burns, 67 NY2d 562 [1986]	22, 23, 30, 33, 35
City of Baton Rouge/Parish of East Baton Rouge v Capital City Press, L.L.C., 4 So3d 807 [La Ct App 2008]	29
Cowles Publ. Co. v State Patrol, 109 Wash2d 712 [Wash 1988]	29
Daily Gazette Company v City of Schenectady, 93 NY2d 145 [1999]	*passim*
Data Tree LLC v Romaine, 9 NY3d 454 [2007]	25
Department of the Air Force v Rose, 425 US 352 [1976]	27
Gallogly v City of New York, 51 Misc 3d 296 [Sup Ct NY County 2016]	--
Gould v New York City Police Department, 89 NY2d 267 [1996]	24, 26, 38, 39
Karlin v McMahon, 96 NY2d 842 [2001]	13, 14, 36, 37, 40, 41
Ligon v City of New York, 925 F Supp 2d 478 [SD NY 2013]	7
Lino v City of New York, 101 AD3d 552 [1st Dept 2012]	7
Matter of Gannett Co. v James, 86 AD2d 744, lv denied 56 NY2d 502 [1982]	22
Matter of Schenectady County Society for the Prevention of Cruelty to Animals v Mills, 18 NY3d 42 [2011]	24, 25, 38
Matter of Short v Board of Managers of the Nassau County Medical Center, 57 NY2d 399 [1982]	*passim*
Peer News LLC v City & County of Honolulu, 138 Haw 53 [Haw 2016]	29
Prisoners' Legal Services of New York v New York State Department of Correctional Services, 73 NY2d 26 [1988]	22
Russo v Nassau County Cmty. Coll., 81 NY2d 690 [1993]	40
Rutland Herald v City of Rutland, 84 A3d 821 [Vt 2013]	29
Scott, Sardano & Pomerantz v Records Access Officer of City of Syracuse, 65 NY2d 294 [1985]	25

The New York Times Company v City of New York Fire Department, 4 NY3d 477 [2005] 26, 38

The Rake v Gorodetsky, 452 A2d 1144 [RI 1982] 28

Tompkins v Freedom of Information Commn., 46 A3d 291 [Conn App 2012] 29

Washington Post Co. v New York State Ins. Dept., 61 NY2d 557 [1984] 40

Westchester Rockland Newspapers, Inc. v Kimball, 50 NY2d 575 [1980] 25

Xerox Corporation v Town of Webster, 65 NY2d 131 [1985] 26, 38

Statutes:

Civil Rights Law § 50-a ..... *passim*

Civil Rights Law § 50-b 40

QUESTION PRESENTED

Whether section 50-a of the Civil Rights Law bars production under the Freedom of Information Law of ten years of NYPD judicial decisions adjudicating charges of officer misconduct against civilians because, even though redaction would remedy any section 50-a privacy concerns, redaction is unavailable as a matter of law to courts adjudicating FOIL disputes involving section 50-a materials.

STATEMENT OF JURISDICTION

This Court has jurisdiction to entertain the appeal pursuant to CPLR 5602 because the Appellate Division of the Supreme Court, First Department, granted the New York Civil Liberties Union's motion for leave to appeal and certified for review the question of whether its decision reversing the order of the Supreme Court was properly made (see R426-27 [Order Granting Leave to Appeal, Aug. 31, 2017]).

INTRODUCTION

At issue in this case is the public's right to know how the country's largest and most influential police department—the New York City Police Department (NYPD)—is adjudicating cases involving charges against police officers accused

of having engaged in misconduct against civilians. This appeal comes to the Court at a time when police accountability has taken on paramount importance amidst a national controversy over unchecked police use of force, most disturbingly in the form of police killings of unarmed black men.

In contrast to the profound policy issues at the heart of this appeal, the legal issue it presents is prosaic: whether courts can use redaction to resolve disputes over Freedom of Information Law (FOIL) requests for records covered by section 50-a of the Civil Rights Law, which deems as confidential certain law-enforcement personnel records. Here, Supreme Court ordered production of ten years of NYPD disciplinary rulings involving alleged police misconduct with all details that would identify officers redacted, thus providing the public with a clear view of the NYPD's adjudicatory practices while fully protecting officer privacy interests. The Appellate Division reversed, however, holding that redaction is unavailable to courts adjudicating FOIL disputes involving section 50-a records.

This holding was erroneous. In its most thorough examination of the interplay between FOIL and section 50-a, this Court expressly endorsed redaction as the way to balance the transparency imperatives of FOIL against the privacy interests underlying section 50-a. This endorsement is consistent with four decades of rulings from this Court endorsing redaction to balance competing interests in a wide range of FOIL disputes, as well as with the approach taken by the United

States Supreme Court and courts from other states that have faced disputes similar to the one now presented to this Court.

Nonetheless, the First Department held in this case that redaction is categorically unavailable because, in its view, this Court's endorsement of redaction for section 50-a records was dicta and because two other cases from this Court barred judicial use of redaction. Neither of those cases involved section 50-a, however, and neither can be squared with this Court's long-standing jurisprudence about FOIL and section 50-a. Moreover, adoption of the position suggested by the Appellate Division would radically narrow the scope of the Freedom of Information Law by exempting from public disclosure government records if they contained as little as a single sentence of exempt material.

STATEMENT OF FACTS

This appeal arises out of a Freedom on Information Law request by the appellant New York Civil Liberties Union (NYCLU) seeking copies of ten years of NYPD disciplinary rulings involving police officers alleged to have abused civilians. The NYCLU understands the relevant facts bearing on this appeal to be undisputed.

The NYCLU is a not-for-profit, non-partisan organization whose mission is to defend civil rights and civil liberties and to preserve and extend constitutionally

guaranteed rights to people whose rights have historically been denied (R36-37 [affidavit of Christopher Dunn, Apr. 12, 2012, ¶ 2]). Police accountability has long been an issue of major concern to the NYCLU (id. ¶ 3).

The NYCLU played a central role in the 1992 creation of the New York City Civilian Complaint Review Board (CCRB), an independent City agency charged with oversight responsibility for the NYPD (see id.). Since then, the NYCLU has devoted substantial resources to monitoring and reporting about the activities of the CCRB (see id. and R43-111 [Dunn aff, exhibit A] [2007 NYCLU report on CCRB and police accountability]).

A primary responsibility of the CCRB is to investigate complaints from civilians alleging misconduct by uniformed members of the NYPD (R37 [Dunn aff ¶ 5]). In particular, the CCRB investigates complaints of excessive force, abuse of authority, discourtesy, and offensive language (id.). In those cases where the CCRB "substantiates" at least one allegation against an officer, the agency sends the case to the NYPD for possible prosecution and discipline (R37-38 [Dunn aff ¶ 7]).[1]

Once the CCRB refers a substantiated case to the NYPD, the department can drop the case, negotiate a plea with the officer, or prosecute the case in the NYPD's internal adjudicatory forum, which is known as the "Trial Room" (R38 [Dunn aff ¶ 9]). The Trial Room is overseen by the Deputy Commissioner of

Trials, who has jurisdiction over disciplinary matters adjudicated by the NYPD (R38 [Dunn aff ¶ 10]; 38 RCNY 15-02), and whose office includes judges who act as hearing officers in the Trial Room (R38 [Dunn aff ¶ 10]).

For those cases that go to trial,[2] the Trial Room process closely resembles a conventional trial (R38 [Dunn aff ¶ 12]). The NYPD and the officer are represented by counsel, an NYPD judge presides over the case, counsel make arguments and introduce evidence (including witness testimony), and briefs are filed (id.; see also 38 RCNY 15-03, 15-04 [describing pre-hearing and hearing procedures]). Pursuant to regulations promulgated by the NYPD, Trial Room hearings are open to the public (see 38 RCNY 15-04[g]; R38 [Dunn aff ¶ 12]).

After the hearing is concluded, the judge issues a draft written opinion that "consist[s] of a summary and analysis of the testimony, recommended findings of fact and conclusions of law, and recommendations for the disposition of the Charges and Specifications" (38 RCNY 15-06[a][2]). After the officer's counsel is given an opportunity to comment on the draft, the police commissioner reviews the materials and makes a final disposition in the case (R39 [Dunn aff ¶ 14]; 38 RCNY 15-08[a]).

---

[2] The parties disagree about the number of CCRB-substantiated cases that go to trial, with the NYCLU believing a relatively small number go to trial, and the NYPD contending that far more cases go to trial (compare R38 [Dunn aff ¶ 11] [relying on CCRB reports that identify the following number of trials: 2011: 17; 2010: 14; 2009: 20; 2008: 19; 2007: 11] with R231 [verified answer ¶ 47] [estimating that there are 420 responsive Trial Room Decisions]).

This process ultimately results in two documents. One is a final version of the Trial Room decision approved by the police commissioner (R39 [Dunn aff ¶ 14]; see also R151-54 [Dunn aff, exhibit D] [sample Trial Room decision in final form and bearing the police commissioner's signature]).[3] It is these Trial Room decisions that are the records at issue in this appeal.

The second document arising out of a Trial Room proceeding is a "Disposition of Charges." That document contains information about the officer, the charges being adjudicated, the name of the Trial Room judge, whether the officer was found guilty, and any final discipline imposed on the officer (see R39 [Dunn aff ¶ 14]; R156-57 [Dunn aff, exhibit E] [sample Disposition of Charges]).

The NYCLU long has been interested in learning of the legal and factual bases on which the police commissioner disposes of CCRB-substantiated cases that proceed to trial (R39-40 [Dunn aff ¶ 17]). To take just one example, the NYCLU wishes to see the legal analysis used by the department to assess substantiated cases about stops and frisks (id.). The NYCLU has been deeply

[3] In a small percentage of cases (upon information and belief less than 10%), the police commissioner does not adopt the decision of the trial judge in full, resulting in an amended final decision (R39 [Dunn aff ¶ 16]).

involved in stop-and-frisk issues,[4] and complaints about stop-and-frisk have been among the most common type of complaint received and substantiated by the CCRB (id.). Accordingly, the NYCLU, as well as the public in general, has a strong interest in knowing the contents of final Trial Room decisions and related Dispositions of Charges.

ADMINISTRATIVE PROCEEDINGS

On August 17, 2011, the NYCLU served a FOIL request on the NYPD seeking two categories of records:

1. Copies of all final opinions, dated from January 1, 2001 to present, from the department trial room (Deputy Commissioner of Trials) adjudicating charges and specifications arising out of cases in which the CCRB has substantiated charges against a member of the department. By final decisions, I am referring to versions of opinions actually adopted by the Police Commissioner as opposed to recommendation decisions (or so-called Fogel drafts). I assume these final decisions are readily available from the Deputy Commissioner of Trials or from the Department Advocate's Office.

[4] See e.g. *Ligon v City of New York*, 925 F Supp 2d 478 (SD NY 2013) (in NYCLU class-action, granting motion for preliminary injunction halting unlawful NYPD stop-and-frisk activity in and around private residential buildings); *Lino v City of New York*, 101 AD3d 552 (1st Dept 2012) (in NYCLU class-action, holding that New York sealing statutes apply to NYPD stop-and-frisk database).

2. Copies of documents identifying the formal and final discipline imposed in conjunction with each decision encompassed within request 1 above.

(R159 [Dunn aff, exhibit F] [Letter from Christopher Dunn to Thomas P. Doepfner, Aug. 17, 2011]).

On September 21, 2011, the NYPD denied the NYCLU's request in its entirety (see R161 [Dunn aff, exhibit G] [Letter from Sgt. James Russo to Christopher Dunn, Sept. 21, 2011]). In support of the denial, the NYPD invoked three FOIL exemptions: (1) section 87(2)(a), which exempts records protected by state and federal statute, including section 50-a of the Civil Rights Law; (2) section 87(2)(g), which exempts certain inter-agency and intra-agency records; and (3) section 87(2)(b), which exempts records the disclosure of which would constitute an unwarranted invasion of privacy (id.).

On October 20, 2011, the NYCLU administratively appealed the blanket denial, contending the NYPD had not adequately supported the claimed exemptions and that the NYPD could use redaction to remove any protected material from the responsive documents (see R163 [Dunn aff, exhibit H [Letter from Christopher Dunn to Jonathan David, Oct. 20, 2011]]).

On December 15, 2011, the NYPD granted in part and denied in part the NYCLU's administrative appeal (see R167-69 [Dunn aff, exhibit I] [Letter from Jonathan David to Christopher Dunn, Dec. 15, 2011]). The NYPD granted the

appeal with respect to the second category of requested documents, those "containing the 'formal and final discipline' imposed 'in conjunction with each [Trial Room] decision,'" and agreed to produce those "Dispositions of Charges" documents with redactions (id.). The NYPD denied the appeal with respect to the first category of requested documents, the final Trial Room decisions, and cited the same three exemptions it had invoked in the initial denial—sections 87(2)(a), 87(2)(b), and 87(2)(g)—and added a fourth FOIL exemption, section 87(2)(e), which applies to certain law-enforcement records (see id.).

The NYPD subsequently produced to the NYCLU 747 pages of Dispositions of Charges connected to the Trial Room Decisions it had withheld (R227 [verified answer ¶ 34]). It did so "with identifying details redacted" (id.).

LOWER COURT PROCEEDINGS

In response to the NYPD's denial of its administrative appeal concerning the Trial Room decisions, the NYCLU filed an Article 78 petition on April 12, 2012 (R25-34). On June 1, 2012, the NYPD filed a motion to dismiss (R174-76) and narrowed the defense of its denial of the Trial Room decisions to a single FOIL exemption: section 87(2)(a)'s exemption for records protected by state law, specifically section 50-a of the Civil Rights Law (R178-180 [affirmation of

Marilyn Richter in support of cross-motion to dismiss, June 1, 2012, ¶¶ 2, 5-6]).[5]

On October 9, 2012, New York County Supreme Court denied the NYPD's motion to dismiss and granted the petition (R13 [New York Civil Liberties Union v New York City Police Department, 102436/12 [Sup Ct, NY County Oct. 9, 2012]]). Supreme Court directed the department to attempt to redact a sample of five Trial Room decisions "to remove anything to identify the subject of the complaint" and to serve those decisions on the subject officers involved in those five decisions (see id.).

The NYPD then extensively redacted the five decisions to remove all details that could identify the officers. As the NYPD explained in its verified answer,

> Examples of details that were redacted include: the names of the complainant, all involved officers, and all witnesses to the incident; the exact date of the incident, the exact location of the incident and any other street names referenced [in the decisions]; further identifying details concerning the officers, the complainant and all witnesses, such as their height and weight, their religion, the professions of complainants and witnesses, and the assignments of officers if the officers were assigned to a precinct, and the make and model of their cars.

[5] In a subsequently filed answer, the NYPD reasserted that the Trial Room decisions also fell within FOIL's privacy and law-enforcement exemptions (see R236 [verified answer ¶ 71]). Since then, however, the NYPD has relied entirely on its section 50-a claim through section 87(2)(a) (see R287-337 [brief for respondents-appellants to the First Department [July 5, 2016]] [relying entirely on section 50-a claim]).

(R233 [verified answer ¶ 61]). In addition to serving those redacted decisions on the five officers, the NYPD submitted them to Supreme Court for review.

In January 2014, the officers filed a four-page attorney affirmation objecting to production of the Trial Room decisions and arguing that "no level of redaction can adequately ensure that the identity of the officers can remain confidential" (R255 [affirmation of Andrew C. Quinn, Jan. 13, 2014, ¶ 7]). In July 2014, after having reviewed the redacted decisions in camera, Supreme Court found them to be "adequate" and directed that "[a]ll future requests are to be done as the five in camera submissions to this court" (R15 [NYCLU v NYPD, 102436/12 [Sup Ct, NY County July 23, 2014] [order approving redactions]]).[6]

The NYPD then filed a motion to recuse the Supreme Court Justice assigned to the matter in light of his involvement in unrelated litigation against New York City, and the judge granted that motion on November 20, 2014 (R21 [Transfer Order]). In an April 2015 hearing before a newly-assigned Justice, the NYPD requested that he reconsider the original judge's rulings, (R262-273 [transcript of

[6] On October 2, 2014, Supreme Court issued two amended orders reiterating the content of its July 23, 2014, order but striking language that erroneously directed the respondents to file an answer (which they had already done) (R17 [Amended Order]; R19 [Addendum to Amended Order]).

hearing, April 21, 2015], which he declined to do, citing the "law of the case" (R8 [Decision and Order, April 21, 2015]).

On September 24, 2015, the NYPD filed a timely Notice of Appeal (R5). Following full briefing and argument on December 15, 2016, the Appellate Division, First Department issued a decision on March 30, 2017, in which it reversed Supreme Court's decision (R428 [New York Civil Liberties Union v New York City Police Department, 148 AD3d 642 [1st Dept 2017]]). When the NYPD had not done so, the NYCLU entered judgment in June 2017 (R433) and then filed a Motion for Permission to Appeal with the First Department (R426). That court granted the NYCLU's motion on August 29, 2017 (R426-27), and on September 18, 2017, this Court issued a briefing schedule.

THE FIRST DEPARTMENT DECISION

The First Department decision is straightforward. As an initial matter, the court rejected the suggestion that the section 50-a privacy interests at issue in the Trial Room decisions are diminished because Trial Room proceedings are open to the public. According to the court, public access to those proceedings and the confidentiality attaching to the resulting decisions "are distinct questions governed by distinct statutes and regulations" (NYCLU v NYPD, 148 AD3d at 643). The

court also asserted that the decisions contained material not "disclosed at the public trial" (id.).

The court next addressed whether redaction is available to address privacy concerns that might be raised by the disclosure of records covered by section 50-a. On this point, the court concluded that this Court's decisions in *Matter of Short v Board of Managers of Nassau County* (52 NY2d 399 [1982]) and *Karlin v McMahon* (96 NY2d 842 [2001]) were binding precedent that foreclosed consideration of redaction as a tool to resolve the tension between section 50-a and FOIL (see 148 AD3d at 643). In doing so, the court discounted this Court's express endorsement of redaction in *Daily Gazette Company v City of Schenectady* (93 NY2d 145 [1999]), a case involving a dispute over a FOIL request seeking police records covered by section 50-a (see 148 AD3d at 643-44). According to the First Department, *Daily Gazette* was not controlling because this Court's discussion about redaction was dicta and because the case came between *Short* and *Karlin* (see id.).

Finally, the Appellate Division held that the NYPD's use of redaction in producing to the NYCLU nearly 750 pages of other disciplinary records covered by section 50-a did not effect a waiver of the NYPD's redaction arguments (see 148 AD3d at 644).

In closing, the Appellate Division acknowledged the public's compelling interest in records involving police misconduct and candidly recognized that redaction would protect the section 50-a officer privacy interests implicated by release of the NYPD Trial Room decisions. Nonetheless, it felt bound by this Court's rulings in *Short* and *Karlin*:

> We appreciate the various policy arguments made by petitioner and amici curiae, and agree that the public has a compelling interest in ensuring that respondents take effective steps to monitor and discipline police officers. Likewise, we recognize that the principles of confidentiality that underlie section 50-a may very well be protected by the redaction of identifying details from the disciplinary decisions sought here. However, as an intermediate appellate court, we cannot overrule the Court of Appeals' decisions in *Short* and *Karlin*, and are obligated to reverse based on this controlling precedent. The remedy requested by petitioner must come not from this Court, but from the legislature or the Court of Appeals.
>
> (id. at 644).

ARGUMENT

The legal issue this appeal presents is whether courts are barred from using redaction in disputes involving Freedom of Information Law requests for records protected by section 50-a of the Civil Rights Law. Resolution of that issue starts with this Court's one decision addressing redaction in FOIL disputes involving section 50-a but extends to a broader examination of this Court's jurisprudence involving the Freedom of Information Law, section 50-a, and redaction. Before

turning to that jurisprudence, however, the appellant NYCLU provides a brief overview of FOIL and section 50-a.

I. AN OVERVIEW OF THE FREEDOM OF INFORMATION LAW AND SECTION 50-A

Originally enacted in 1977 (L 1977, ch 933), the Freedom of Information Law is codified at sections 84 to 90 of the Public Officers Law. Section 84 emphasizes the public's compelling interest in access to government records, an interest the statute expressly notes encompasses the right to know "the process of governmental decision-making":

> The legislature hereby finds that a free society is maintained when government is responsive and responsible to the public, and when the public is aware of governmental actions. The more open a government is with its citizenry, the greater the understanding and participation of the public in government.
>
> …. The people's right to know the process of governmental decision-making and to review the documents and statistics leading to determinations is basic to our society. Access to such information should not be thwarted by shrouding it with the cloak of secrecy or confidentiality.

(Public Officers Law § 84 [emphasis added]).

Section 87 of FOIL contains the additional provisions most important to this

appeal.[7] Subsection 87(2) mandates production of responsive records and includes specific exemptions to that broad mandate. Particularly important for the redaction issue before the Court is the mandate itself, which requires production of records "or portions thereof":

> Each agency shall, in accordance with its published rules, make available for public inspection and copying all records, except that such agency may deny access to records or portions thereof [that fall within the listed exemptions].
>
> (Public Officers Law § 87[2] [emphasis added]).

Section 87 also lists fourteen exemptions to its mandate that agencies produce "records or portions thereof," the first of which is the one most pertinent to this appeal. Specifically, 87(2)(a) exempts records that "are specifically exempted from disclosure by state or federal statute" (Public Officers Law § 87[2][a]). One such exemption under state law is section 50-a of the Civil Rights Law.

The protections for police officer personnel records codified in section 50-a were originally enacted in 1976 (L 1976, ch 413), the year before the enactment of FOIL. Section 1 of the statute provides in relevant part:

---

[7] Section 85 specifies the short title "Freedom of Information Law"; section 86 provides definitions; section 88 addresses access to state legislative records; section 89 creates the committee on open government, prescribes a redaction procedure for the privacy exemption, and sets standards for the processing of FOIL requests; and section 90 addresses severability.

> All personnel records used to evaluate performance toward continued employment or promotion, under the control of any police agency . . . shall be considered confidential and not subject to inspection or review without the express written consent of such police officer . . . , except as may be mandated by lawful court order.

(Civil Rights Law § 50-a[1]).[8]

II. DECADES OF RULINGS FROM THIS COURT ESTABLISH THAT REDACTION IS AVAILABLE TO BALANCE THE TRANSPARENCY GOALS OF THE FREEDOM OF INFORMATION LAW AND THE PRIVACY INTERESTS OF SECTION 50-A

Recognizing that FOIL requires government agencies to produce responsive "records or portions thereof" but also creates an exemption for certain state statutes, and recognizing further that section 50-a's mandate that police "personnel records . . . shall be considered confidential" falls within FOIL's state-statute exemption, the question presented on this appeal is whether courts adjudicating FOIL disputes involving section 50-a materials are barred from using redaction in balancing the transparency and privacy interests of the two statutes. Forty years of rulings from this Court make clear that redaction is available in disputes such as the one presented by the NYCLU's request for NYPD Trial Room decisions.

This Court has issued only two rulings that meaningfully address the interaction between FOIL and section 50-a, and both support Supreme Court's order that the NYPD Trial Room decisions be produced with redactions. Most significantly, nearly twenty years ago the Court expressly endorsed the use of

redaction in a dispute concerning a FOIL request for section 50-a materials and in doing so emphasized that section 50-a must be read narrowly when it conflicts with FOIL. And that case built on an earlier one in which this Court rejected the argument that section 50-a materials are categorically exempt from disclosure under FOIL.

Beyond the specific context of FOIL cases involving section 50-a, this Court repeatedly has held in a wide range of other types of FOIL cases going back to 1980 that judicial use of redaction optimizes government transparency while protecting legitimate countervailing considerations. Simply put, this Court long has recognized that redaction is an appropriate and commonsense tool for courts to use when resolving FOIL controversies.

Consistent with this, the United States Supreme Court and courts from other states have endorsed redaction in disputes like this one as an appropriate way to balance transparency and privacy interests. Though these rulings of course do not bind this Court, they further support the appropriateness of redaction here.

A. This Court Has Expressly Endorsed Redaction as a Tool to Balance FOIL's Transparency Goal Against Section 50-a's Privacy Interests and Has Held that Section 50-a Must Be Read Narrowly in the Context of FOIL Disputes

Consideration of the availability of redaction in FOIL disputes involving section 50-a materials must start with this Court's 1999 decision in *Daily Gazette*

Company v City of Schenectady, the only case in which this Court has addressed redaction in the context of a FOIL dispute involving section 50-a materials (see 93 NY2d 145 [1999]). The dispute in *Daily Gazette* grew out of an incident in which eighteen off-duty Schenectady police officers traveling from a bachelor party on a bus pelted a passing car with eggs and then, "under a promise of confidentiality," admitted to misconduct and accepted punishment (see id. at 152).

Two local newspapers subsequently filed FOIL requests seeking "all documents related to disciplinary actions," the identities of the sanctioned officers, and the specific punishment imposed on each (see id.). After those requests were denied administratively, the papers filed suit, Supreme Court ordered production of the records notwithstanding section 50-a, and the Appellate Division affirmed.

This Court's opinion in the case focused primarily on the newspapers' argument that the records they sought were not covered by section 50-a because, they argued, that statute protected against disclosure only for use in litigation involving officers, a use not implicated by the newspapers' request (see id. at 153-58). The Court rejected that "exceedingly narrow interpretation" of section 50-a. Rather, it held that the section's protective policies went beyond the litigation context and were intended to protect officers generally from potential harassment:

> The statute was designed to prevent abusive exploitation of personally damaging information contained in officers' personnel records– perhaps most often in connection with a criminal defense attorney's

> FOIL application for purposes of general cross-examination of a police witness in a criminal prosecution. Undeniably from the legislative record, however, the legislative objective went beyond precluding disclosure on behalf of defendants in pending criminal cases. . . . The original legislation was sponsored and passed as a safeguard against potential harassment of officers through unlimited access to information contained in personnel files. . . .
>
> ….
>
> Certainly, later amendments underscore that confidentiality of officers' personnel records was intended to go well beyond merely shielding them from abusive use in an actual litigation context. The legislative history of the 1981 amendment to section 50-a, adding correction officers to the protected class, declared that the described abuses of personnel information it was designed to prevent included "harassment or reprisals" against an officer or "his/her family."
>
> (93 NY2d at 154-55 [citations omitted]).

Having construed section 50-a to extend beyond the narrow context of litigation to broader concerns about officer harassment, the Court in *Daily Gazette* turned to the interaction between section 50-a and FOIL. In doing so, it emphasized that, in light of the compelling transparency interests underlying FOIL, the reach of section 50-a must be carefully limited in FOIL disputes:

> [T]o prevent FOIL disclosure of officers' personnel records, it is not sufficient merely to demonstrate that the recorded data may be "used to evaluate performance toward continued employment or promotion" of the officers–literally the sole standard for confidentiality set forth in Civil Rights Law § 50-a. That comprehensive statutory exemption must be tempered when it interacts with the competing, equally strong legislative policy of open government through broad public access to governmental agency records embodied in the FOIL legislation.

> Hence, when access to an officer's personnel records relevant to promotion or continued employment is sought under FOIL, nondisclosure will be limited to the extent reasonably necessary to effectuate the purposes of Civil Rights Law § 50-a–to prevent the potential use of information in the records in litigation to degrade, embarrass, harass or impeach the integrity of the officer.

(93 NY2d at 157-58 [citations omitted]). And consistent with this Court's long-established law that the government agency bears the burden of demonstrating that responsive records qualify for an exception under FOIL, the Court explained that in a case involving an agency effort to invoke section 50-a under the FOIL exception for a state statute barring disclosure, "the agency must demonstrate a substantial and realistic potential of the requested material for the abusive use against the officer" (id. at 159).

After narrowing the scope of section 50-a in light of the transparency goals of FOIL, this Court expressly endorsed redaction as a method for balancing the privacy interests of section 50-a and transparency interests of FOIL:

> [D]isclosure for uses that would not undermine the protective legislative objectives could be attained either by a restrictive formulation of the FOIL request itself, or through redaction by the agency having custody of the records, tailored in either case so as to preclude use in personal attacks against an officer which Civil Rights Law § 50-a was enacted to preclude. Thus, it may well be possible for petitioners largely to fulfill their important function of dissemination of matters of legitimate public interest, i.e., concerning the appropriateness of the City's response to off-duty misconduct by members of its police force, without sacrificing the values the Legislature embraced in enacting Civil Rights Law § 50-a.

(id. at 159).[9]

The Court's approach to FOIL, section 50-a, and redaction in *Daily Gazette* follows logically from *Capital Newspapers Division of the Hearst Corporation v Burns* (67 NY2d 562 [1986]), this Court's only other decision that meaningfully analyzes the interaction between FOIL and section 50-a.[10] That case arose out of a FOIL request by a newspaper for the sick leave records of an Albany City police officer (see 67 N.Y.2d at 562-64). The officer intervened and argued that section 50-a categorically exempted personnel records from disclosure through FOIL, but this Court squarely rejected that position based on the legislative history of section 50-a (see id. at 567-69). In doing so, the Court addressed an Appellate Division ruling in an earlier case that held that section 50-a created a categorical exception to FOIL and expressly rejected that holding: "Insofar as the court . . . relied on a blanket exception in section 50-a, it erred" (id. at 569 [discussing *Matter of*

---

[9] In *Daily Gazette* the Court held that the records did not need to be produced, and it offered no explanation as to why redaction would not have been appropriate in that case. A likely explanation, however, is that the request itself expressly sought the identities of the officers, see 93 NY2d at 152, which renders redaction irrelevant.

[10] The only other case in which this Court has examined section 50-a in the context of a FOIL dispute is its 1988 decision in *Prisoners' Legal Services of New York v New York State Department of Correctional Services*, 73 NY2d 26, 29 (1988), but that case has little bearing on the dispute now before the Court. Prisoners' Legal Services arose out of a FOIL request for the grievances filed against a single correction officer, and the issue before the Court was whether the disputed records fell within section 50-a at all. See 73 NY2d at 30 (noting that case "does not involve an interpretation of FOIL, but the meaning of 'personal [sic] records' under Civil Rights Law § 50-a(1)—i.e. whether they encompass the particular grievance records demanded here").

Gannett Co. v James, 86 AD2d 744, lv denied 56 NY2d 502 [1982]]).[11]

Having rejected the notion of a categorical FOIL exemption for section 50-a personnel records in *Capital Newspapers*, this Court then applied well-established FOIL standards to the dispute to conclude that the newspaper was entitled to obtain the sick leave record because the officer had failed to meet his burden under FOIL to show the record qualified for FOIL's privacy exemption (see id. at 570-71).[12]

This Court's rejection in *Capital Newspapers* of a categorical FOIL exemption for section 50-a records and its application of general FOIL standards to the disputed personnel records lay the groundwork for the Court's unexceptional endorsement of redaction in *Daily Gazette*. Indeed, that endorsement is but one example of four decades of rulings from this Court establishing redaction as a standard tool for courts to use in FOIL disputes.

B. This Court's Endorsement of Redaction in *Daily Gazette* Is Consistent with Nearly Forty Years of Rulings from This Court Endorsing Redaction as a Tool in FOIL Disputes

Almost since the inception of FOIL, this Court has repeatedly recognized the

---

[11] While this Court's opinion in *Capital Newspapers* can fairly be read as limiting the reach of section 50-a to situations involving pending litigation, the Court subsequently took a broader view in *Daily Gazette*, as is discussed supra at 19-21. That distinction, however, has no bearing on this dispute, as the NYCLU does not contend that the NYPD Trial Room decisions are not covered by section 50-a.

[12] In the course of describing the lower court proceedings, this Court noted that Supreme Court had ordered production of a redacted version of the sick leave report, see 67 NY2d at 564-65, but the Court's opinion contains no discussion of redaction.

role redaction plays in mediating competing interests implicated by certain FOIL requests. As the Court explained in a 2011 decision, "Courts deciding FOIL issues often order redaction when a record contains both exempt and nonexempt information" (*Matter of Schenectady County Society for the Prevention of Cruelty to Animals v Mills*, 18 NY3d 42, 46 [2011]).[13] In a similar vein, this Court fifteen years earlier directed lower courts to use redaction when applying any of FOIL's exemptions:

> [B]lanket exemptions for particular types of documents are inimical to FOIL's policy of open government. Instead, to invoke one of the exemptions of section 87 (2), the agency must articulate "particularized and specific justification" for not disclosing requested documents. If the court is unable to determine whether withheld documents fall entirely within the scope of the asserted exemption, it should conduct an in camera inspection of representative documents and order disclosure of all nonexempt, appropriately redacted material.
>
> (*Gould v New York City Police Department*, 89 NY2d 267, 275 [1996] [emphasis added; citations omitted]).

[13] In that case, the Court expressed frustration over the litigation before it when redaction would have readily resolved the matter: "We are at a loss to understand why this case has been litigated. It seems that an agency sensitive to its FOIL obligations could have furnished the petitioner a redacted list with a few hours' effort, and at negligible cost. Instead, lawyers for both sides have submitted briefs and argued the case in three courts, demanding the attention of 13 judges, generating four judicial opinions and resulting in a delay in disclosure of almost four years. It is our hope that the Department, and other agencies of government, will generally comply with their FOIL obligations in a more efficient way." 18 NY3d at 46.

For example, consistent with the redaction regime that FOIL section 89(2) prescribes, this Court has routinely endorsed redaction in disputes involving FOIL's privacy exemption (see *Westchester Rockland Newspapers, Inc. v Kimball*, 50 NY2d 575, 582 [1980] [in dispute over FOIL request for lottery records that would reveal identity of needy charity recipients, upholding the lower court's decision to review the requested documents in camera and redact the identities of recipients]; *Scott, Sardano & Pomerantz v Records Access Officer of City of Syracuse*, 65 NY2d 294, 298 [1985] [in dispute over FOIL request for motor vehicle accident reports that contained names and addresses of accident victims, noting that the law permits "disclosure of the records involved where those identifying details are deleted"]; *Data Tree LLC v Romaine*, 9 NY3d 454, 464 [2007] [in dispute over FOIL request for land records that might include social security numbers and dates of birth, explaining that "even when a document subject to FOIL contains such private, protected information, agencies may be required to prepare a redacted version with the exempt material removed"]; *Schenectady County*, 18 NY3d at 45 [in dispute over FOIL request for names and addresses of veterinarians, explaining that "[w]here it can do so without unreasonable difficulty, the agency must redact the record to take out the exempt information"]).

This Court has taken the same approach when addressing FOIL cases involving the statutory exemption for inter-agency or intra-agency materials (section 87[2][g]). In *Xerox Corporation v Town of Webster*, for instance, the Court concluded that opinions and recommendations prepared by an outside consultant to an agency were subject to FOIL and potentially fell within the intra-agency materials exemption but explained that, to the extent the responsive records contained nonexempt material, "they should be redacted and made available to appellant" (65 NY2d 131, 133 [1985]).

Similarly, in *Gould v New York City Police Department*, the Court again endorsed the use of redaction in the context of the intra-agency materials exemption (see 89 NY2d 267 [1996]). In that case, which involved a FOIL dispute over police officer memo books and complaint follow-up reports, the Court remanded for further proceedings to determine whether any of the requested records were exempt and stated that the lower court should "order disclosure of all nonexempt, appropriately redacted material" (id. at 275).

Finally, in *The New York Times Company v City of New York Fire Department*, a case involving a FOIL request for 911 dispatch calls made on September 11, 2001, and the intra-agency exemption, this Court upheld an order that records be disclosed "but that they be redacted to eliminate nonfactual materials" (see 4 NY3d 477, 487 [2005]). In doing so, the Court explained that

such an approach was "a straightforward and correct application of the statute" (id.).

C. This Court's Endorsement of Redaction in *Daily Gazette* Is Also Consistent with Rulings from the United States Supreme Court and State Courts that Have Confronted Similar Controversies

This Court's treatment of redaction is also consistent with the position articulated by the United States Supreme Court and various other state courts facing controversies similar to the one now before this Court. While the statutes examined by these courts are not identical to New York's Freedom of Information Law, the courts' reasoning reflects a widespread recognition of redaction as a "practical" and "workable" tool to balance the public's interest in certain disciplinary records against legitimate privacy interests.

In *Department of the Air Force v Rose*, the United States Supreme Court considered a request for summaries of internal ethics hearings that the Air Force denied pursuant to the federal Freedom of Information Act exemption for "personnel . . . files and similar files the disclosure of which would constitute a clearly unwarranted invasion of personal privacy" (425 US 352, 357 [1976] [citing 5 USC § 552[b][6]]). The Court held that the Second Circuit had properly identified "a workable compromise between individual rights and the preservation of public rights to Government information" (id. at 381 [quotations omitted]) when

it ordered the Air Force to "cooperate with the [district] judge in redacting the records so as to delete personal references and all other identifying information" (id. at 358).

In a case strikingly similar to this one, the Rhode Island Supreme Court considered a newspaper's freedom of information request for redacted internal police department reports concerning police brutality complaints (see *The Rake v Gorodetsky*, 452 A2d 1144 [RI 1982]). Like the records at issue here, the brutality reports there followed an evidentiary hearing and contained the hearing officer's findings of fact, her determination of the guilt or innocence of the officer, and the police chief's final action on the finding (see id. at 1146). Also like the records at issue here, the lower court judge had ordered the names of the police officers and civilians discussed in the reports redacted (see id. at 1149). Before the Rhode Island Supreme Court, the police department argued that the complete reports were shielded from disclosure by an exemption for "records which are identifiable to an . . . employee; including . . . personnel . . . records" (see id. at 1147 [citing RI Access to Public Records Act § 38-2-2[d][1]]). The Supreme Court rejected this argument and instead held that the reports were not exempt in part because "the reports do not identify the citizen complainants or the police officers because the names of both have been deleted" (452 A2d at 1148).

The Hawai'i Supreme Court in *Peer News LLC v City & County of Honolulu* made a point of emphasizing "the compelling public interest in instances of police misconduct given the importance of public oversight of law enforcement" (138 Haw 53, 73-74 [Haw 2016]), and it went on to catalogue how courts around the country recognize that "'the proper performance of public duty is to be given great weight' when balanced against competing privacy interests" (id. at 73 [quoting *Cowles Publ. Co. v State Patrol*, 109 Wash2d 712, 748 [Wash 1988]]; see also *Rutland Herald v City of Rutland*, 84 A3d 821, 825 [Vt 2013] ["[T]here is a significant public interest in knowing how the police department supervises its employees and responds to allegations of misconduct."]; *Tompkins v Freedom of Information Commn.*, 46 A3d 291, 299 [Conn App 2012] [emphasizing the need to "facilitate the public's understanding and evaluation of the [department's] investigative process, decision-making and overall handling of an important matter"] [quotations omitted]; *City of Baton Rouge/Parish of East Baton Rouge v Capital City Press, L.L.C.*, 4 So3d 807, 821 [La Ct App 2008] ["The public should be ensured that both the activity of public employees suspected of wrongdoing and the conduct of those public employees who investigate the suspects is open to public scrutiny."] [quotations omitted]).

III. THIS COURT SHOULD ORDER PRODUCTION OF THE NYPD TRIAL ROOM DECISIONS WITH IDENTIFYING DETAILS OF SUBJECT OFFICERS REDACTED.

This Court should order the NYPD to produce the Trial Room decisions with details identifying the subject officers redacted as proposed by the NYPD and approved by Supreme Court. Such a ruling would strike the appropriate balance between the transparency interests underlying the Freedom of Information Law and the privacy interests of section 50-a and would follow from this Court's rulings in *Daily Gazette*, *Capital Newspapers*, and this Court's many other decisions addressing FOIL and section 50-a. As for the two decisions from this Court that the Appellate Division construed to bar redaction in this case, neither involved section 50-a and their holdings have been abrogated by this Court's extensive jurisprudence involving FOIL and section 50-a.

A. *Daily Gazette* and This Court's Many Other FOIL Rulings Compel the Conclusion that the NYPD Trial Room Decisions Must Be Produced with Identifying Details Redacted to Protect Officer Privacy

Given this Court's rulings on FOIL, section 50-a, and redaction, the NYCLU submits that analysis of this appeal is straightforward. As an initial matter, *Capital Newspapers* establishes that section 50-a records like the NYPD Trial Room decisions are not categorically exempt from disclosure under FOIL (see 67 NY2d at 567, 569, discussed supra at 21-23). Indeed, as this Court subsequently

explained in *Daily Gazette*, not only are section 50-a materials subject to public access under FOIL, but the transparency goals of FOIL require that section 50-a be read in disputes such as this one to shield section 50-a records in only narrow circumstances:

> [W]hen access to an officer's personnel records relevant to promotion or continued employment is sought under FOIL, nondisclosure will be limited to the extent reasonably necessary to effectuate the purposes of Civil Rights Law § 50-a–to prevent the potential use of information in the records in litigation to degrade, embarrass, harass or impeach the integrity of the officer.
>
> (93 NY2d at 157-58).

Understanding that the NYPD Trial Room decisions are not categorically exempt from FOIL, the next step in the analysis is to apply normal FOIL standards to the records. And at this point, this Court's long-standing endorsement of redaction comes into play, starting with the Court's express endorsement in *Daily Gazette* for redacting section 50-a records:

> [D]isclosure for uses that would not undermine the protective legislative objectives could be attained either by a restrictive formulation of the FOIL request itself, or through redaction by the agency having custody of the records, tailored in either case so as to preclude use in personal attacks against an officer which Civil Rights Law § 50-a was enacted to preclude. Thus, it may well be possible for petitioners largely to fulfill their important function of dissemination of matters of legitimate public interest, i.e., concerning the appropriateness of the City's response to off-duty misconduct by members of its police force, without sacrificing the values the Legislature embraced in enacting Civil Rights Law § 50-a.

(id. at 159).[14] Beyond *Daily Gazette*, this Court has repeatedly endorsed redaction as a tool courts should use in balancing transparency and the competing interests underlying FOIL's exemptions (see supra at 23-26). Indeed, as this Court noted in the New York Times FOIL dispute, redaction is "a straightforward and correct application of the statute" (4 NY3d at 487).

That redaction is appropriate is not simply an abstract doctrinal concept. Rather, the Appellate Division itself recognized that using redaction to allow production of the NYPD Trial Room decisions would appropriately balance the competing concerns presented by FOIL and section 50-a:

> We appreciate the various policy arguments made by petitioner and amici curiae, and agree that the public has a compelling interest in ensuring that respondents take effective steps to monitor and discipline police officers. Likewise, we recognize that the principles of confidentiality that underlie section 50–a may very well be protected by the redaction of identifying details from the disciplinary decisions sought here.

(148 AD3d at 644).

The final step in the analysis is to determine whether redacted versions of the NYPD Trial Room decisions would pose a substantial risk to officers of abuse or harassment, in which case the privacy interests of section 50-a would prevail

---

[14] The NYCLU notes that it also tailored its request exactly as suggested by this Court's language in *Daily Gazette*. See R163 (Letter from Christopher Dunn to Jonathan David, Oct. 20, 2011) ("Moreover, to the extent responsive records contain exempt material, that provides no basis for a blanket withholding; rather, the Department can only redact such material.").

over the transparency interests of FOIL, as this Court explained in *Daily Gazette* (see 93 NY2d at 157-58). On this point, those objecting to the production bear the burden of demonstrating the risk of harassment, a point this Court has confirmed twice in the context of FOIL disputes involving section 50-a (see *Daily Gazette*, 93 NY2d at 159 ["In the case of a claim that disclosure is specifically exempted from disclosure by state statute . . . by reason of Civil Rights Law § 50-a, this means the agency must demonstrate a substantial and realistic potential of the requested material for the abusive use against the officer or firefighter."] [quotations omitted]; *Capital Newspapers*, 67 NY2d at 569-70 [explaining that officer opposing production of lost time report covered by section 50-a bore burden of demonstrating risk of abuse]).

Here, the NYPD has introduced nothing in the record that so much as suggests, much less establishes, that production of Trial Room decisions shorn of all identifying details would pose "a substantial and realistic potential of the requested material for the abusive use against the officer" (*Daily Gazette*, 93 NY2d at 159). To the contrary, it submitted to Supreme Court a sample of redacted decisions it believed shielded officer identities, which Supreme Court unsurprisingly found to be adequate given the extensive redactions the NYPD made:

> Examples of details that were redacted include: the names of the complainant, all involved officers, and all witnesses to the incident; the exact date of the incident, the exact location of the incident and any other street names referenced [in the decisions]; further identifying details concerning the officers, the complainant and all witnesses, such as their height and weight, their religion, the professions of complainants and witnesses and the assignments of officers if the officers were assigned to a precinct, and the make and model of their cars.

(R233-34 [verified answer ¶ 61]). Not only are the redactions comprehensive, but anonymity is further assured by the fact that this dispute involves production of what would be at most a few hundred decisions in a police department of 36,000 officers.[15] This situation stands in stark contrast to cases where redaction might not fully protect officer identity because the FOIL request was for a single known officer, as in Prisoner Legal Services, or for a small number of officers in a small police department, as in *Daily Gazette*.

As for the officers who opposed production of the Trial Room decisions, they offered the following through an attorney affirmation:

> Despite the proposed redactions to the Disciplinary Decisions made by the City, no level of redaction can adequately ensure that the identity of the officers can remain confidential. To the contrary, the identity of the randomly selected officers can easily be ascertained

---

[15] NYPD, About NYPD Landing Page, http://www1.nyc.gov/site/nypd/about/about-nypd/about-nypd-landing.page ("The New York City Police Department (NYPD) is the largest and one of the oldest municipal police departments in the United States, with approximately 36,000 officers and 18,000 civilian employees.") (visited Oct. 19, 2017). As noted above, the parties disagree about the number of Trial Room decisions implicated by the NYCLU's request, but even if one accepts the NYPD's figure, the request involves no more than about 420 decisions (see supra footnote 2).

> through a cursory analysis of the redacted decisions, violating the confidentiality provisions of Civil Rights Law §50-a.

(R255 [Quinn Affirmation ¶ 7]). Setting aside that this says nothing about potential abuse or harassment (the essential element of a section 50-a defense), this assertion is conclusory and quite similar to the one made by the police officer in *Capital Newspapers* who sought to block release of his sick leave report. In that case, this Court readily found that effort to be insufficient to meet the heavy burden placed on a party seeking to invoke a FOIL exemption (see 67 NY2d at 570 ["Nor has intervenor satisfied his burden of proving exemption under clause (iv) because his assertion that he will suffer 'economic or personal hardship' if the 'Lost Time Report' is released to the newspaper is conclusory and not supported by any facts."]), and the similar assertion here fares no better, particularly in light of the extensive redactions made by the NYPD.

Indeed, the attorney affirmation is not credible on its face. While one can envision circumstances in which a particular set of redactions might be insufficient for a particular officer involved in a particular incident, this affirmation claims that "no level of redaction can adequately ensure that the identity of the officers can remain confidential." That is plainly not true and is the just the type of extreme and conclusory assertion that cannot be a basis for negating FOIL and the public's

compelling interest in documents that will reveal how the NYPD is adjudicating charges of misconduct against officers accused of mistreating civilians.

B. The Appellate Division Erred When It Disregarded *Daily Gazette* and Read Two Other Cases from This Court to Bar Redaction in FOIL Cases Involving Section 50-a

Dismissing this Court's redaction discussion in *Daily Gazette* as dicta and without addressing any of this Court's decades of other rulings about redaction, the lower court concluded that two decisions from this Court—*Short* v Board of Managers of the Nassau County Medical Center (57 NY2d 399 [1982]) and *Karlin v McMahon* (96 NY2d 842 [2001] [mem op])—barred the use of redaction in FOIL disputes involving section 50-a (see NYCLU, 148 AD3d at 643-44). This was error.

As an initial matter, the Appellate Division's disregard of *Daily Gazette*'s endorsement of redaction is misguided. While it is true that this Court did not order redaction in that case (for reasons that are not explained but may have been due to the fact that the FOIL request there, unlike the NYCLU, specifically sought the names of the officers (see 93 NY2d at 152)), that hardly changes the force or significance of *Daily Gazette*, which is this Court's most substantial ruling on the intersection between FOIL and section 50-a. Moreover, as discussed above, the Court's endorsement of redaction in *Daily Gazette* is simply one instance in a long

line of cases, decided before and after *Daily Gazette*, endorsing redaction in FOIL cases. Of course, this Court will assign to *Daily Gazette* the weight it deems appropriate, but the NYCLU respectfully submits the ruling cannot be dismissed as suggested by the Appellate Division. Indeed, the NYCLU believes *Daily Gazette* resolves the dispute over the availability of redaction in this case.

As for this Court's decisions in *Short* and *Karlin*, they should not be read to stand for the proposition that courts are barred from using redaction in FOIL disputes involving section 50-a records. Decided in 1982, *Short* arose out of a FOIL request for twenty-nine medical records from 1972 involving Medicaid reimbursement for abortions performed at the Nassau County Medical Center (see 57 NY2d at 401-02). Supreme Court ordered production of the records "but only after deletion of personal identifying details," and the Appellate Division affirmed (id. at 402).

This Court reversed and held that redaction was not available in that FOIL dispute. In doing so, the Court focused on FOIL's section 89(2), which authorizes redaction of records subject to the privacy exemption created by section 87(2)(b) (see id. at 404-05). The *Short* court construed section 89(2)'s detailing of redaction for the privacy exemption to mean that FOIL barred the use of redaction for any other exemption, including the exemption for state laws contained in subsection 87(2)(a): "Under familiar canons of construction, the explicit authorization of the

deletion device with respect to this one category of records imports a legislative intention to restrict the deletion device to that single category" (id. at 405).

This extraordinarily narrow view of the availability of redaction from 35 years ago has been abrogated by several more recent decisions from this Court. Most importantly for purposes of this appeal, of course, is *Daily Gazette*, decided seventeen years after *Short*, in which this Court expressly endorsed redaction as applied to section 50-a, which is imported into FOIL not through the privacy exemption but through the exemption for state laws. In addition, as noted above, since deciding *Short* this Court has endorsed redaction in three other cases that involved neither the state-law exemption nor the privacy exemption but instead the exemption in section 87(2)(g) for inter- and intra-agency materials (see supra at 24-26 [discussing Data Tree, *Gould*, and New York Times Co.]). Consistent with the suggestion that this Court long ago abandoned the notion that redaction might be limited to the privacy exemption, in *Schenectady County* Society it cited cases involving both the privacy exemption and the intra-agency exemption when it noted that "[c]ourts deciding FOIL issues often order redaction when a record contains both exempt and nonexempt information" (18 NY3d at 46 [citing *Xerox Corp.*, *New York Times Co.*, and Scott]).

To be sure, none of these cases discusses (or even mentions) *Short*. But this Court plainly has moved on from *Short*'s narrow view that redaction is available only in cases involving FOIL's privacy exemption.

Moreover, *Short*'s redaction analysis was wrong as a matter of statutory interpretation when it was decided and remains wrong to this day. While section 89(2) does spell out a specific redaction regime for the privacy exemption, the FOIL section that mandates production and identifies the exemptions—section 87(2)—by its express terms contemplates redaction for every exemption. Specifically, section 87(2) requires production of responsive records while allowing agencies to "deny access to records or portions thereof" that fall within the enumerated exemptions. Denying access to "portions thereof" is of course precisely what redaction accomplishes.[16] Consistent with that, requiring the NYPD to produce the Trial Room decisions while allowing it to redact details identifying the subject officers is nothing more and nothing less than allowing it to deny access to the "portions thereof" that would identify those officers. The express language of section 87(2) authorizes production of redacted documents and is wholly consistent with the transparency goal of the statute, and the provisions in

[16] Though this Court has never used the word "redaction" when discussing the "portions thereof" language of section 87(2), it twice in cases involving redaction referred to this language. See *Gould*, 89 NY2d at 277 ("Indeed, the Police Department is entitled to withhold complaint follow-up reports, or specific portions thereof, under any other applicable exemption . . . ."); Data Tree, 9 NY3d at 462 (citing not to section 89(2) but to section 87(2) in stating that privacy exemption "authorizes each agency to deny access to records or portions of such records").

section 89(2) cannot and should not be read to negate that authorization and that goal.

In addition, *Short*'s approach would dangerously limit the reach of the Freedom of Information Law and is completely contrary to the legislature's express goal of maximizing government transparency through FOIL, a goal this Court repeatedly has highlighted (see e.g. *Washington Post Co. v New York State Ins. Dept.*, 61 NY2d 557, 564 [1984] ["FOIL is generally liberally construed and its exemptions narrowly interpreted so that the public is granted maximum access to the records of government."]; *Russo v Nassau County Cmty. Coll.*, 81 NY2d 690, 697 [1993] [discussing the legislative purpose of FOIL as furthering a vision of "open and accessible government [as] a hallmark of a free society, engendering public understanding and participation"]). If the privacy exemption were the only exemption for which redaction were available, any government record could be withheld so long as it contained so much as a single sentence of material exempt under any of FOIL's numerous other exemptions. That sort of contorted view of the statute would wholly undermine its essential goal of transparency.

As for *Karlin*, that is a two-paragraph memorandum order that arose out of a FOIL request for certain records concerning the identities of victims of sex offenses, which state law protects from public disclosure pursuant to section 50-b of the Civil Rights Law (see 96 NY2d 842, 843 [2001]). *Karlin* contains a single

sentence stating that redacted records need not be produced and cites *Short* (see 96 NY2d at 843). While *Karlin* was issued after *Daily Gazette*, the NYCLU respectfully submits that its single sentence about redaction cannot and should not be construed to mandate a regime in which redaction is available to courts only in FOIL cases involving the privacy exemption, contrary to decades of rulings from this Court, the transparency goal of FOIL, the language of the statute, and common sense.

CONCLUSION

For all the foregoing reasons, the appellant New York Civil Liberties Union respectfully requests that the Court hold that redaction is available in FOIL disputes involving section 50-a records and affirm the Supreme Court order directing the New York City Police Department to produce the NYPD Trial Room decisions, with the redactions proposed by the NYPD and approved by Supreme Court.

Dated: New York, N.Y.
October 26, 2017

NEW YORK CIVIL LIBERTIES UNION FOUNDATION
By: _____
Christopher Dunn
Robert Hodgson
Arthur Eisenberg
125 Broad Street, 19th Floor
New York, NY 10004
(212) 607-3300 (telephone)
(212) 607-3318 (facsimile)

Counsel for Appellant

CERTIFICATE OF COMPLIANCE

I hereby certify pursuant to 22 NYCRR 500.1(j) that the foregoing brief was prepared on a computer using Microsoft Word.

A proportionally spaced typeface was used, as follows:

Name of typeface: Times New Roman
Point size: 14
Line spacing: Double

Word Count. The total number of words in this brief, inclusive of point headings and footnotes and exclusive of pages containing the table of contents, table of citations, proof of service, certificate of compliance, corporate disclosure statement, questions presented, statement of related litigation, or any authorized addendum containing statutes, rules, regulations, etc., is 9,861.

Dated: New York, N.Y.
October 26, 2017

NEW YORK CIVIL LIBERTIES UNION FOUNDATION
By: _____
Christopher Dunn
Robert Hodgson
Arthur Eisenberg

Counsel for Appellant

AFFIDAVIT OF SERVICE

STATE OF NEW YORK)
) ss.:
COUNTY OF _____)

_____, being duly sworn, deposes and says:

deponent is not a party to this action, is over 18 years of age, and resides at

_____.

On the _____ day of _____, 20_____, deponent served the within brief upon each attorney for each party to this appeal, at the address designated by that attorney for that purpose, by

_____, and by _____.

_____

Sworn to before me this
_____ day of _____, 20___

_____
Notary Public